to aid in the execution of judicial process issued under any of the preceding sections of this chapter, or as shall be necessary to prevent the violation and enforce the due execution of the provisions of this chapter. (R. S. § 1989.)

From Act Apr. 9, 1866, c. 31, § 9, 14 Stat. 29; Act May 31, 1870, c. 114, § 13, 16 Stat. 143.

§ 56. Peonage abolished. The holding of any person to service or labor under the system known as peonage is abolished and forever prohibited in any Territory or State of the United States; and all acts, laws, resolutions, orders, regulations, or usages of any Territory or State, which have heretofore established, maintained, or enforced, or by virtue of which any attempt shall hereafter be made to establish, maintain, or enforce, directly or indirectly, the voluntary or involuntary service or labor of any persons as peons, in liquidation of any debt or obligation, or otherwise, are declared null and void. (R. S. § 1990.)

From Act Mar. 2, 1867, c. 187, § 1, 14 Stat. 546.

Chapter 4.—FREEDMEN

Sec.

61. Laws continued in force.
62. Laws enforced by Secretary of War.
63. Claims for pay or bounty; payment.
64. Retained bounty fund; application for payments.
65. Who deemed wife and children of colored soldiers.

Section 61. Laws continued in force. All laws and parts of laws pertaining to the collection and payment of bounty, prize money, and other legitimate claims of colored soldiers, sailors, and marines, or their heirs, shall remain in force until otherwise ordered by Congress. (R. S. § 2032.)

From Act June 10, 1872, c. 415, § 1, 17 Stat. 366.

§ 62. Laws enforced by Secretary of War. The Secretary of War is authorized to carry into effect all laws and parts of laws referred to in the preceding section, and to this end he may employ such clerical force as he deems necessary. (R. S. § 2033.)

From Act June 10, 1872, c. 415, § 1, 17 Stat. 366.

§ 63. Claims for pay or bounty; payment. All sums due upon certificates issued, or which may be issued in settlement of claims for pay, bounty, prize money, or other moneys due to colored soldiers, sailors, or marines, or their legal representatives, shall be paid in the same manner as similar claims are paid to white soldiers, sailors, and marines, but no such certificate shall be issued until it shall have been ascertained that the application is made by the original claimant, or, if he be dead, by his true living legal representative, nor until the identity of such claimant or representative as the case may be, shall have been duly established. If an agent or attorney be employed, the allowance for his services shall not in any case exceed that contemplated in the scale of fees and allowances fixed by joint resolution July 26, 1866, Numbered 86, section 2, Fourteenth Statute, page 368, and no power of attorney, transfer or assignment of the amount of such claims, or any part thereof, shall in any case be recognized. (Mar. 3, 1879, c. 182, § 2, 20 Stat. 402; Feb. 1, 1888, c. 4, § 1, 25 Stat. 9; July 1, 1898, c. 546, 30 Stat. 640.)

§ 64. Retained bounty fund; application for payments. The unexpended balance of the retained fund in the custody of the Freedmen's Bureau prior to July 1, 1902, is covered into the Treasury as "Miscellaneous receipts." Upon application by parties entitled to any portion of the money so covered in, the Secretary of the Treasury is authorized and directed to pay the amount found due in the same manner and from the same appropriation as claims for bounty to volunteer soldiers are now paid. (July 1, 1902, c. 1351, 32 Stat. 556.)

§ 65. Who deemed wife and children of colored soldiers. In determining who is the wife or child of any colored soldier, within the meaning of this chapter, evidence that the soldier and the woman claimed to be his wife cohabited or associated as husband and wife, and so continued to cohabit or associate at the time of enlistment, or evidence that a form of marriage, whether such marriage was authorized or recognized by law or not, was entered into by them, and that the parties thereafter lived together as husband and wife, and so continued to live together at the time of the enlistment, shall be deemed sufficient proof of marriage; and the children born of any such marriage shall be taken to be the children embraced within the provisions of this chapter, whether such marriage was or was not dissolved at the time of the enlistment. (R. S. § 2037.)

From Res. Mar. 3, 1865, No. 29, 13 Stat. 571.

Chapter 5.—ALIEN OWNERSHIP OF LAND

Sec.

71. Acquisition or ownership of land in Territories by aliens.
72. Same; lands previously acquired.
73. Same; acquisition by inheritance or in collection of debts.
74. Same; conveyance by aliens before escheat proceedings.
75. Same; escheat proceedings.
76. Same; condemnation and sale of lands.
77. Same; public lands.
78. Same; real estate in District of Columbia.
79. Same; real estate in District of Columbia; treaties.
80. Same; real estate in District of Columbia; alien-owned corporations.
81. Same; real estate in District of Columbia; forfeiture of property.
82. Same; real estate in District of Columbia; foreign legations.
83. Public lands in Hawaii; right to acquire in general.
84. Same; conveyance or other transfer to alien.
85. Same; preference right to purchase land to persons declaring intention to become citizens.
86. Same; sale of agricultural land to persons declaring intention to become citizens.

Section 71. Acquisition or ownership of land in Territories by aliens. No alien or person who is not a citizen of the United States, or who has not declared his intention to become a citizen of the United States in the manner provided by law shall acquire title to or own any land in any of the Territories of the United States except as hereinafter provided. The prohibition of this section shall not apply to cases in which the right to hold or dispose of lands in the United States is secured by existing treaties to citizens or subjects of foreign countries, which rights, so far as they may exist by force of any such treaty, shall continue to exist so long as such treaties are in force, and no longer. (Mar. 2, 1897, c. 363, § 1, 29 Stat. 618.)

§ 72. Same; lands previously acquired. Sections 71 to 77 of this title shall not apply to land owned in any of the Territories of the United States by aliens, which was acquired on or before March 3, 1887, so long as it is held by the then owners, their heirs or legal representatives, nor to any alien who shall become a bona fide resident of the United States, and any alien who shall become a bona fide resident of the United States, or shall have declared his intention to become a citizen of the United States in the manner provided by law, shall have the right to acquire and hold lands in either of the Territories of the United States upon the same terms as citizens of the United States. If any such resident alien shall cease to be a bona fide resident of the United States then such alien shall have ten years from the time he ceases to be such bona fide resident in which to alienate such lands. This section and sections 71, 73 to 77 shall not be construed to prevent any persons not citizens of the United States from acquiring or holding lots or parcels of lands in any incorporated or platted city, town, or village, or in any mine or mining claim, in any of the Territories of the United States. (Mar. 2, 1897, c. 363, § 2, 29 Stat. 618.)

§ 73. Same; acquisition by inheritance or in collection of debts. Sections 71 to 77 of this title shall not prevent aliens from acquiring lands or any interests therein by inheritance or in the ordinary course of justice in the collection of debts, nor from acquiring liens on real estate or any interest therein, nor from lending money and securing the same upon real estate or any interest therein; nor from enforcing any such lien, nor from acquiring and holding title to such real estate, or any interest therein, upon which a lien may have heretofore or may hereafter be fixed, or upon which a loan of money may have been heretofore